



File No.: EXP202300438

Sanctioning Procedure No. PS/00240/2024

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 2, 2022. The complaint is directed against FRUTAS CALISA, S.L. with NIF B37460607. The reasons for the complaint are as follows:

The complainant states that, without prior consent, they were contacted via the mobile application WhatsApp by a worker of the complained party, understanding that this worker obtained their data from the information provided by the complainant for the management of the SALAMANCA TARJETA ACTIVA card, which is used by its users to obtain discounts on purchases made at local businesses. Along with the complaint, the following documentation is provided:

- Screenshot of WhatsApp messages received on November 25 and 27, 2022.

Message received from the phone number ***TELEFONO.1 containing the profile picture of the holder. The content of the message, according to the complainant, received on Friday, November 25, 2022, at 20:32 is:

"A cute vegan girl who will be jaajajaj" 20:32

"Let me guess who I am" 20:33

"Sticker of WhatsApp raising arms" 20:59

Message from Sunday, November 27, 2022:

"A.A.A.??(" 13:46

The WhatsApp application shows the message: "The sender is not in your contacts."

With the options: "Block," "Report," and "Add to Contacts."

- Complaint filed with the National Police on November 30, 2022, regarding the WhatsApp messages received on November 25, 2022, and subsequent messages from the phone ***TELEFONO.1, which, based on the profile picture, has been identified as a worker from the Frutas Calisa fruit shop (...), whose name is possibly B.B.B. and who located their phone through the ACTIVA SALAMANCA card.

- Screenshot of purchases made and discounts applied with the SALAMANCA TARJETA ACTIVA card on the dates: November 5, 18, and 22, 2022, at the establishment of the complained party.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on January 18, 2023, the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on January 29, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on February 20, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such notifications were provided, reiterating that, henceforth, notifications would be made exclusively by electronic means.

As no response was received from the complained party, on February 23, 2023, the notification of the forwarding of the complaint was reiterated electronically to the complained party, which did not collect the aforementioned notification, being understood as rejected on March 6, 2023.

THIRD: On March 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 7, 2023, the complained party submitted a written response to the forwarding, in which they state the following:

"FIRST: The facts alleged by the complainant are not as this person claims they are.

SECOND: In November, the complainant, a regular customer of the fruit shop for quite some time, placed an order for some vegetables and herbs that are not usually sold because they are perishable vegan products, and as every week she indicates what she wants, it is brought to her, and the next day or a couple of days later, she is called by phone (PHONE NUMBER THAT SHE GIVES ME PERSONALLY), she comes to the fruit shop, picks up her order, and pays for it.

THIRD: I want to emphasize that in addition to being a customer, every year we hold a raffle for a basket at CHRISTMAS, and for this, each customer...

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INDICATE YOUR NAME AND PHONE NUMBER, so that we know and can call the client who received the basket and who has also participated this year and clearly left their name and phone number.

FOURTH: To my surprise, at the end of November, A.A.A. placed their order and as they did not come to collect the products they ordered, we called them by phone, as always, and when they did not answer the calls, a WhatsApp message was sent to remind them that the order was ready, and we did not hear back from them. We received no response. To my astonishment, this client, through the AEPD, claims that we obtained their data from a card called ACTIVA, and has filed a complaint for Data Protection, which is completely FALSE, as it is the complainant who personally provided me with their phone number many months ago, lying in their statement and allegation.

FIFTH: There was never any intention to harm or violate the client's data, considering that the client was also interested in collecting the merchandise in a timely manner as they had always done, nor was there any bad faith since the phone number is an easily obtainable piece of information and is not considered high-risk data.

SIXTH: FRUTAS CALISA S.L. complies with the Law in every respect, and that is why we provide the invoices for the implementation of the LOPD, which we carried out at the time on the advice of our Consultant (**COMPANY.1) through the company **COMPANY.2, which works with the company **COMPANY.3, dated 07/06/2019, and updated again in the year 2021 (07/04/21) following the updates from the AEPD and adhering to the criteria of our CONSULTING, and complying with the Law. We provide the technical reports and everything related to the implementation and the measures, in addition to the fact that the company has decided to train its employees in this area, so that they understand firsthand what is and is not personal data, and its possible vulnerabilities. We provide a diploma certifying the training completed by an employee, a 60-hour course that validates their knowledge in Data Protection matters.

Along with their writing, they provide the certificate of participation in the data protection course conducted by B.B.B. and the payment invoices for the same, as well as a copy of the Activity Register of the Treatment of FRUTAS CALISA, S.L.

FIFTH: On March 14, 2023, after analyzing the reasons presented by the responding party that are in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. The resolution was notified to the appellant on March 14, 2023, as evidenced in the file.

SIXTH: On April 13, 2023, the complainant filed a discretionary appeal for reconsideration through the AEPD's Electronic Registry, against the archiving resolution issued in the file, in which they express their disagreement with the

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challenged resolution, alleging that it is false that he provided his phone number through the means indicated by the responding party, as he has never participated in a raffle with this entity nor made any order, also highlighting that the responding party never proves these facts as the data controller. Furthermore, he emphasizes that, even if this were true, the message received was clearly of a personal nature and not professional, as it does not reference any order nor does the sender, B.B.B., identify himself as an employee of the company.

On August 30, 2023, a hearing regarding the appeal for reconsideration was granted to the responding party, within the framework established in Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of allowing them to formulate allegations and present any documents and justifications they deemed appropriate. The notification was sent electronically, and the deadline for collecting it expired on September 19, 2023, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on January 29, 2023, as stated in the certificate in the file.

SEVENTH: On October 24, 2023, the Director of the Spanish Agency for Data Protection resolves to uphold the appeal filed by the claimant, ordering the continuation of the procedure due to the lack of evidence presented by the responding party regarding the statements made in their letter of March 7, 2023, with no evidence provided of the existence of consent or a valid contract justifying the obtaining of the claimant's phone number, and the content of the messages sent to her being personal rather than professional, without any mention of the existence of an order for vegan products referred to by the responding party.

EIGHTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

According to the Preliminary Investigation Report issued by the inspector of the procedure dated May 22, 2024, the following inquiries were made to determine the author of the sender of the messages in question in this procedure and the origin of the processing of the claimant's personal data by the responding party:

- On November 10, 2023, a diligence was issued by the inspector to record that a consultation was made on the website <https://numeracionyoperadores.cnmc.es/portabilidad/movil/operador>, where VODAFONE ESPAÑA appears as the operator of the number ***TELEFONO.2, from which the WhatsApp messages subject to the complaint were sent.

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- In light of the result of such diligence, an information request is made to the entity VODAFONE ESPAÑA on that date; in order to request the: "Ownership of the subscriber line with number ***TELEFONO.1, specifically on November 25, 2022, specifying name/company name, NIF/CIF as well as address. In case it has been canceled or the ownership changed after the specified date, information is requested regarding the date on which the cancellation occurred. In case this line has been ported, information is requested regarding the date it was ported as well as the identification of the beneficiary operator."

- On December 1, 2023, VODAFONE ESPAÑA responds to such request, indicating that: "After receiving this information request, my client has proceeded to carry out the relevant checks, not identifying the number ***TELEFONO.1 as its own. For this reason, my client has consulted the information available in the Registry of Numbering and Telecommunications Operators of the National Commission of Markets and Competition (CNMC), finding that the previously indicated number belongs to the operator ORANGE ESPAGNE, S.A. UNIPERSONAL (hereinafter, ORANGE). In this regard, a screenshot of the result of this search is attached."

- On December 1, 2023, the inspector sends a second information request to VODAFONE ESPAÑA, in order to clarify whether as of the date of the sending of the messages (November 25, 2022) the owner of the line was VODAFONE ESPAÑA or ORANGE, and on December 14, 2023, VODAFONE ESPAÑA responds, clarifying the following: "After receiving this information request, my client has proceeded to carry out the relevant checks, verifying that the number ***TELEFONO.2, on November 25, 2022, was not listed as its own. Furthermore, the referred line previously belonged to Vodafone, specifically until December 11, 2020."
 - Clarifying this particular, on December 14, 2023, ORANGE is requested to provide information about the owner of the cited line, as of November 25, 2022.
 - From the response of Orange Espagne, S.A.U. dated December 20, 2023, registration number REGAGE23e00086372963, it is evident that: "The line ***TELEFONO.1 has been active at Jazztel since February 16, 2021, to the present, in the name of B.B.B. with NIF ***NIF.1, whose tax address is located at ***DIRECCION.1."
 - In light of the fact that the tax address of the owner of the line coincides with that of the claimed entity FRUTERÍAS CALISA, according to the commercial report obtained from the Axesor tool dated November 13, 2023, on December 6, 2023, a request is made to FRUTAS CALISA, which, due to not responding within the deadline, is reiterated on September 26, 2023, by the inspector, in which: "Information is requested that within ten business days the following information related to A.A.A. be presented, as a result of being contacted without prior consent through the mobile phone application WhatsApp by an employee of the claimed party.
1. Confirmation of the employment relationship existing between B.B.B. and Frutas Calisa S.L. on November 25, 2022.
 2. Business hours of the establishment.
 3. Reason for the WhatsApp messages sent to the complainant on Friday, November 25, 2022, from phone number ***TELEFONO.1: "A cute vegan girl who is nice, who will be jaajajaj" 20:32 "Let me guess who I am" 20:33 "Sicker of WhatsApp raising arms" 20:59. And on Sunday, November 27, 2022: "A.A.A.??(" 13:46
 4. Source from which they obtained the personal data of the complainant.
 5. Legal basis for the processing of the personal data of the complainant.
 6. If the basis for processing is the consent of the interested party, evidence of this.
 7. Any other information they consider relevant."
- On April 15, 2024, FRUTERÍAS CALISA responds to the request from this Agency C.C.C. ((...)) of the alleged owner of the line from which the message was sent, who is an employee of the fruit shop), stating, in summary, the following:
 1. Reiterates the same arguments made in their letter of March 7, 2023, responding to the transfer from this Agency. In which they deny that the events occurred as reported by the complainant, stating that it was she who voluntarily provided her phone number to C.C.C. many months ago so that the establishment could inform her when she could pick up her vegan orders, which, being perishable, needed to be requested expressly, and that she is a regular customer, having already left her name and phone number to participate in the annual Christmas basket raffle. They also reiterate that B.B.B. received training in personal data protection, proving it with their participation certificate.
 2. They add that the messages sent on November 25 and 27, 2022, responded to the following reasons: "My surprise is that at the end of November A.A.A. placed her order and as she did not come to pick up the products she ordered, she was called by phone, as always, and not answering the calls, (...) B.B.B. on Friday, November 25, sent her a WhatsApp (sic) as we usually did to remind her that the order was ready and seeing that the ordered product is... perishable, on Saturday it was not picked up and on Sunday, November 27, there was no response, and we insisted on picking up the order on Monday, 28, and we did not hear from them again."
 3. In response to the request for information, it states literally the following:
 - "1- We confirm the employment relationship of B.B.B., attaching the payroll.
 - 2- Business hours of the fruit shop from Monday to Friday from 9 to 14 and from 17 to 20 hours.

Saturdays from 9 to 14 hours.

3- The reason for the messages. Due to the respect with which all customers of the fruit shop are treated with exquisite family care, it is communicated via WhatsApp (sic), as many times before, that their special order, which we do not usually have in the fruit shop, is available for them at our premises.

4- The source of the data of their phone number and WhatsApp (sic) application is that the client provides it to us personally, to call her and inform her when we have the merchandise she orders from us, since we do not usually bring that type of product because its consumption is practically nil among regular customers.

5- The legitimate basis for this client's phone number is a specific situation in which she provides us her phone number and gives us her consent as the law states to call her; therefore, it is a personal data that she wants to provide and thus does. Therefore, there is a relationship of legitimate interest with a purpose of direct marketing.

6- Therefore, there is verbal consent from the interested party for her interest."

Along with her writing, the following documentation is attached:

1.
Activity register as the data controller, which includes the processing "CUSTOMERS AND SUPPLIERS" with the following content:
Description
Commercial management with customers and suppliers. Includes contact details of individuals providing services to a legal entity, including individual professionals.
Purposes
Customer management, accounting, tax, and administrative.
Legitimization
Lawful processing WITHOUT NEED FOR CONSENT due to a LEGITIMATE INTEREST of the Data Controller or Third Party.
Categories of interested parties
Customers and users, Suppliers.
Retention criteria
Retained INDEFINITELY as long as necessary to maintain the purpose of the processing.
Processing system
Partially Automated (Mixed).
Categories of data
Identifying data
ID card or tax identification number, Name and surname, Postal or electronic address, Phone, Manual signature.
Sensitive data
None.
Other types of data
Personal characteristics, Social circumstances, Commercial information, Economic, financial, and insurance data, Transactions of goods and services.
Categories of recipients
Assignments
Organizations or individuals directly related to the controller.
International transfers
None.
2.
Certificate of participation in the training action: "Protection of personal data and digital rights (PSD2 Regulation and LO 3/2018)" from 01/04/2020 to 29/04/2020 of B.B.B. who provides services at the company FRUTAS CALISA S.L. issued by ***COMPANY.
4.
On May 20, 2024, a new diligence is issued by the inspector to record the result of her inquiry regarding the conditions of the Active Card of Salamanca referred to by the complainant as the source

of obtaining her phone number by the entity FRUTERIAS CALISA, which acted as an entity adhered to this system, to which her personal data was transferred. The diligence states that:

"Consulting the website <https://appactiva.aytosalamanca.es/index.php>, the following is obtained:

1.

https://intranet.appactiva.aytosalamanca.es/uploads/CondicionsUs/CondicionsUs_Aso141_es_20200904_101125.pdf, the "GENERAL CONDITIONS OF USE AND OPERATION OF THE MONEDER ACCOUNT FOR HOLDERS" Active Salamanca is obtained, and 2.

https://intranet.appactiva.aytosalamanca.es/uploads/CondicionsUs/CondicionsUs_ConEst_es_20200904_101125.pdf

with the "GENERAL CONDITIONS OF USE AND OPERATION OF THE MONEDER ACCOUNT FOR ESTABLISHMENTS" which are incorporated as annexes to this diligence."

Regarding this documentation, in her report of prior actions, the inspector states the following evidence:

"In the "GENERAL CONDITIONS OF USE AND OPERATION OF THE MONEDER ACCOUNT FOR HOLDERS" of ACTIVA SALAMANCA Diligence of 20/05/2024 that the complainant had to accept to use the ACTIVA SALAMANCA card, it includes:

The purpose of the processing of the data is any activity related to the uses proper to the ACTIVE ACCOUNT and the contractual relationship with its holders, including analysis, statistics, and the C/ Jorge Juan, 6

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profile formation, as well as the execution of advertising, promotion, and marketing actions for the ACTIVE PLATFORM, its affiliated merchants, and ECONOMIC PROMOTION OF SALAMANCA.

The objective and essence of the ACTIVE ACCOUNT is that it can be used in all businesses affiliated with the loyalty system, and therefore the holder expressly and necessarily authorizes the ACTIVE PLATFORM to transfer the data contained in the application and all those obtained in the normal development of this system, solely to the businesses where the ACTIVE ACCOUNT is used or registered, with the same purpose of obtaining ACTIVE currency, its exchange, as well as direct communication to the holders of the ACTIVE ACCOUNT regarding offers, promotions, and information related to the affiliated businesses and services.

In the event that the holder of the ACTIVE ACCOUNT wishes to oppose the receipt of advertising, offers, promotions, and information from a specific business or from ECONOMIC PROMOTION OF SALAMANCA, they may unsubscribe from the APP, or through the automated unsubscribe options that will appear in the advertising blocks that the holder of the ACTIVE ACCOUNT may receive. In the event that the data provided belongs to a third party, this person must be informed about these terms of use and operation, being the only responsible party the person who provides and/or fills out the application form. The holder will retain the ACTIVE currency accumulated until the moment of unsubscribing, being able to redeem the points thereafter.

NINTH: On September 3, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

TENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with what is established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven,

PROVEN FACTS

FIRST: It is recorded that on November 25 and 27, 2022, the complainant received the following WhatsApp messages from the phone number ***TELEFONO.1, which are submitted along with the complaint with the following content:

- Message received on Friday, November 25, 2022, at 20:32 is:

“Una chica wapa vegana y simpática quien sera jaajajaj” 20:32

“Te dejo adivinar quien soy” 20:33

“Sicker de whatsapp levantando los brazos” 20:59

- Message received on Sunday, November 27, 2022:

“A.A.A.???” 13:46

- In both cases, there is a profile picture that, according to the complainant, matches that of the respondent, and the WhatsApp application shows the message: “The sender is not in your contacts.” With the options: “Block,” “Report,” and “Add to Contacts.”

SECOND: It is proven that the complainant provided her personal data to the commercial establishment FRUTAS CALISA, S.L. for commercial purposes related to the purchase of products there.

It has been proven that she was the holder of the wallet account through which she could use the so-called “active salamanca card” to make payments and obtain discounts at the stores associated with that account, among which was the store where the respondent worked, FRUTAS CALISA, S.L., and that she used the card there to make purchases on November 5, 18, and 22, as evidenced by the submission of screenshots of purchases made and discounts applied with the SALAMANCA ACTIVE CARD provided by the complainant.

According to the Diligence issued by the inspector dated May 20, 2024, a new diligence is issued by the inspector to state that she obtained from the website

<https://appactiva.aytosalamanca.es/index.php>, the general conditions applicable to the Salamanca Active Card, in which FRUTERIAS CALISA acted as an entity affiliated with this system, to which her personal data were transferred. In these general conditions, attached to the Diligence, it is established that the holders of personal data provided to this account authorize that they may be transferred solely to the affiliated establishments for use with specific commercial purposes. The following is noted:

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"The purpose of the data processing is any activity related to the uses of the ACTIVE ACCOUNT and the contractual relationship with its holders, including analysis, statistics, and profiling, as well as carrying out advertising, promotion, and marketing actions for the ACTIVE PLATFORM, its affiliated merchants, and the ECONOMIC PROMOTION OF SALAMANCA.

The objective and essence of the ACTIVE ACCOUNT is that it can be used in all businesses affiliated with the loyalty system, and therefore the holder necessarily and expressly authorizes the ACTIVE PLATFORM to transfer the data contained in the application and all those obtained in the normal development of this system, solely to the businesses where the ACTIVE ACCOUNT is used or registered, with the same purpose of obtaining ACTIVE currency, its exchange, as well as direct communication to the holders of the ACTIVE ACCOUNT regarding offers, promotions, and information related to the affiliated businesses and services."

THIRD: It is evidenced that the employee of FRUTAS CALISA, S.L., B.B.B., obtained the personal data of the claimant to which he had access as an employee (name, surname, and phone number) and sent the messages referred to in this file for a non-commercial purpose. This fact is evidenced by the

following evidence:

- From the response of Orange Espagne, S.A.U. dated December 20, 2024, Registration No. REGAGE23e00086372963, it is evidenced that: "The line ***TELEFONO.1 has been active at Jazztel since February 16, 2021, to the present, in the name of B.B.B. with NIF ***NIF.1, whose tax address is located at ***DIRECCION.1."

- The claimant states that she was attended to by this employee of the fruit shop and recognizes that the photograph of the WhatsApp profile from which the messages were sent corresponded to "B.B.B."

- It has been confirmed that B.B.B. is an employee of the fruit shop and (...) of its owner, C.C.C., who has stated this in his two responses to the requests made to the establishment during the investigation phase, providing the employment contract signed with him, thus having access to the personal data recorded in the active salamanca card system.

- The establishment FRUTAS CALISA, S.L. acknowledges that WhatsApp messages were sent to the claimant on that date, although with the purpose of notifying her that she could pick up her order of vegan products. However, this notice is not included in the messages provided.

FOURTH: It is evidenced that B.B.B. participated and obtained a certificate of participation in the training action: "Protection of personal data and digital rights (PSD2 Regulation and LO 3/2018)" from 01/04/2020 to 29/04/2020, which is provided by ***EMPRESA.4, and has been submitted during the preliminary investigation phase.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

The name, surname, and phone number of individuals are considered personal data, the processing of which is subject to the regime provided for in the GDPR, as well as its implementing provisions, in accordance with the provisions of Article 4.1 and 4.2 of the GDPR, which states the following:

"Article 4 Definitions

For the purposes of this Regulation, the following shall be understood as:

1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use,..."

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communication by transmission, broadcasting, or any other form of enabling access, comparison, or interconnection, limitation, suppression, or destruction."

Although it is a disputed fact the source from which access to such personal data was obtained

(through the SALAMANCA TARJETA ACTIVA system, as stated by the complainant, or because the complainant provided the data directly to the establishment, as indicated by the responding party), as well as the purpose and content of such messages (personal content according to the complainant, and professional content according to the responding party), it is certain that the sending of these two messages to the complainant involved the execution of two operations of processing the complainant's phone number (and therefore, their name and surname), which fit the definition of personal data processing contained in Article 4.2 of the GDPR: collection/extraction to obtain the phone number, as well as its use to send the messages.

The execution of the operations of personal data processing referred to is subject to compliance with certain requirements established in data protection regulations, the breach of which could result in an administrative infringement classified under the GDPR, the sanctioning power of which is the responsibility of this Agency. Therefore, another preliminary issue to determine is who would be considered responsible for the processing, and thus, the presumed subject of administrative liability arising in case of non-compliance, in accordance with the provisions of Article 70.1 a) of Organic Law 3/2018, of December 5, on the protection of personal data and the guarantee of digital rights (hereinafter, LOPPDD):

"Article 70. Responsible parties.

1.

Those subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law are: a) The controllers of the processing. b) The processors of the processing. c) The representatives of the controllers or processors not established in the territory of the European Union. d) The certification entities. e) The accredited entities supervising the codes of conduct. (...)"

In this case, it is considered that the responsible party for carrying out the aforementioned processing operations was the employee of the fruit shop and (...) of B.B.B., against whom this procedure should be directed, since they were the one who determined the purposes and means of the processing by accessing the data and sending the messages to the complainant. All of this, in accordance with the provisions of Article 4.7 of the GDPR, which states the following:

7) "'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for their appointment may be established by the law of the Union or of the Member States."

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This is derived from the following evidence established in the investigation proceedings of this file:

- The holder of the phone number from which the messages were sent is B.B.B., as stated in the response from the telecommunications company operating the line, to which a request was made during the investigation. The line of this number was not registered in the name of the fruit shop, nor in the name of its owner, as would have been expected if the messages had been sent in the name or on behalf of the establishment.

- The claimant also states that the profile picture of the WhatsApp account from which the messages were sent corresponded to that of "B.B.B.", which only confirms the previous evidence, which by itself is already decisive.

- It has been confirmed that B.B.B. is an employee of the fruit shop and (...) of its owner, C.C.C., who has stated this in his two responses to the requests made to the establishment during the investigation phase, providing the employment contract signed with him. Therefore, by virtue of his status as an employee and (...) of the owner, he could have access to the personal data that the claimant had provided to the fruit shop, either through the active Salamanca card system or by having provided it to the owner of the establishment, C.C.C., so that he could contact the claimant to collect the orders, as he states.

- The content of the messages themselves does not imply any professional purpose that forms part of the commercial activity of the fruit shop, as neither the word “order” appears nor is there any indication that it is prepared or pending collection, with its content being clearly personal, from which an apparent intention to contact the claimant for personal purposes and not for contractual purposes is deduced, addressing her in a personal tone without any reference to her order.

In conclusion, from this evidence, it is deduced that when B.B.B. accessed the claimant's phone number and sent her the messages referred to in this file, he was not acting as an employee of the fruit shop in the performance of his duties, nor in compliance with the instructions given by the owner of the fruit shop regarding the possible vegan orders that were pending collection as he states, so he must be considered personally responsible for the processing referred to in this file.

Consequently, it is established that B.B.B. would have incurred a breach of personal data protection regulations by processing the claimant's data, without a basis for legitimacy, which allows for administrative liability to be demanded from him for the alleged breaches committed, in accordance with the provisions of Article 70.1 a) of LOPD.

III

Unfulfilled obligation. Lack of lawful basis for processing.

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The GDPR regulates in its Article 5 the principles governing the processing of personal data and establishes in paragraph 1:

“1. Personal data shall be: (the underlining is ours)

a) processed lawfully, fairly, and transparently in relation to the data subject (“lawfulness, fairness, and transparency”);

b) collected for specified, explicit, and legitimate purposes, and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, for scientific and historical research purposes, or for statistical purposes shall not be considered incompatible with the initial purposes (“purpose limitation”);

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (“data minimization”);

d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay (“accuracy”);

e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods as long as they are processed solely for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the implementation of appropriate technical and organizational measures as required by this Regulation to protect the rights and freedoms of the data subject (“storage limitation”);

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures (“integrity and confidentiality”).”

Article 5.2 states: “The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (“proactive responsibility”)”

Article 6 of the GDPR, under the heading “Lawfulness of processing,” specifies in paragraph 1 the circumstances under which the processing of personal data is considered lawful (the underlining is ours):

“1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.

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e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

2. Member States may maintain or introduce more specific provisions in order to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, letters c) and e), by more precisely establishing specific processing requirements and other measures that ensure lawful and fair processing, including other specific processing situations under Chapter IX.

3. The basis for the processing indicated in paragraph 1, letters c) and e), shall be established by:

a) Union law, or

b) the law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, letter e), it shall be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, including, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific processing situations under Chapter IX. The law of the Union or of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union law or the law of the Member States that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

a) any relationship between the purposes for which the personal data were collected and the purposes of the intended further processing;

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b) the context in which the personal data was collected, particularly regarding the relationship between the data subjects and the data controller;

c) the nature of the personal data, specifically when special categories of personal data are processed,

in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;

d) the possible consequences for the data subjects of the intended further processing;

e) the existence of appropriate safeguards, which may include encryption or pseudonymization.”

In relation to the matter at hand, there is evidence that the employee of the fruit shop used the personal data that the claimant had provided to the establishment FRUTAS CALISA for professional reasons, and not to the employee personally, for personal reasons.

In order to carry out any operation of personal data processing, it is an essential requirement that the data controller (in this case, B.B.B.) has one of the lawful bases provided for in Article 6.1 of the GDPR, which legitimizes them in the specific case, for the purpose in question, to carry out the operation of consulting/extracting the claimant's phone number, and above all, to be able to use the said phone number to send WhatsApp messages, which must always respond to the purpose for which the personal data was provided.

The lawful basis must be substantiated by the controller, in accordance with what is stated in Article 5.2 of the GDPR, which has not occurred in this case.

In this regard, it is particularly important to note what is stated in Recital 39 of the GDPR, which establishes the following (the underlining is ours):

“(39). All processing of personal data must be lawful and fair. For natural persons, it must be completely clear that personal data concerning them is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed. The principle of transparency requires that all information and communication regarding the processing of such data be easily accessible and easy to understand, and that plain and clear language be used. This principle particularly refers to the information provided to data subjects about the identity of the data controller and the purposes of the processing, as well as additional information to ensure fair and transparent processing with respect to the affected natural persons and their right to obtain confirmation and communication of the personal data concerning them that is subject to processing. Natural persons must be aware of the risks, rules, safeguards, and rights related to the processing of personal data, as well as how to assert their rights in relation to the processing. In particular, the specific purposes of the processing of personal data must...

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They must be explicit and legitimate, and must be determined at the time of their collection.

Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. This requires, in particular, ensuring that their retention period is strictly limited to a minimum. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means. To ensure that personal data is not retained longer than necessary, the data controller must establish deadlines for its deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data is rectified or deleted. Personal data must be processed in a manner that ensures adequate security and confidentiality of the personal data, including to prevent unauthorized access or use of such data and the equipment used in the processing.

In the present case, from the documentation obtained in the investigation, as well as that provided by the claimant and the establishment FRUTAS CALISA, it is evident that it is not disputed that the claimant provided her personal data to the establishment FRUTAS CALISA for a commercial purpose, and not to its employee for personal purposes.

And we say that it is not a disputed fact, as it is acknowledged by both parties, that the employee of the fruit shop B.B.B. obtained the claimant's phone number because she had provided it to the fruit shop for professional purposes. That is, while there is a discussion about how the employee obtained the claimant's phone number (whether because this data was consulted in the SALAMANCA TARJETA

ACTIVA system, as the claimant states, or because she provided it to the owner of the fruit shop to be able to make and collect perishable vegan orders, as indicated by the fruit shop), what is not disputed is: (i) that B.B.B. had access to this data by being an employee of the fruit shop for professional purposes; (ii) and that he accessed such data to send her two WhatsApp messages on the same dates alleged by the claimant (November 25 and November 27, 2022). Messages that, as has been evidenced during the investigation, were sent from a phone number (**TELEFONO.1) that is owned by that employee, and not by the company to which the data was provided.

From the above, it can be inferred that it was FRUTAS CALISA and not its employee, who had a lawful basis based on the contractual relationship to proceed with the processing of the claimant's personal data, as provided in Article 6.1.b) of the GDPR: "b) the processing is necessary for the performance of a contract in which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures."

It is therefore irrelevant whether the claimant provided her data to the fruit shop through the SALAMANCA ACTIVA card or whether she also provided it to the owner of the fruit shop with the intention of making and collecting perishable vegan orders.

It should be noted that there is evidence confirming that FRUTAS CALISA is an affiliated entity of the SALAMANCA ACTIVA system and can have access to the claimant's data, while it is not evidenced by the fruit shop that it has...

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provided their phone number for the purpose of receiving orders, for which there is no contractual record nor has consent been provided. However, this issue is irrelevant in the case at hand. What is relevant is that in both cases, the entity that had a lawful basis and was authorized to process personal data was the company FRUTAS CALISA, to which the data had been provided for commercial purposes that would fall under a contractual relationship as per Article 6.1.b) of the GDPR between the claimant and the fruit shop. However, this personal data was not provided by the claimant to their employee for personal use, as they did not have an accredited lawful basis that would legitimize them to access this data and send messages from their personal phone number for purposes other than those for which the claimant had provided their data to the fruit shop.

Therefore, the relevant issue here is that, according to the documentation in the proceedings, it can be inferred that B.B.B. acted personally - and not on behalf of or following instructions from the fruit shop - when accessing the claimant's phone number and sending the messages referred to in this file. Thus, since the messages were not sent on behalf of the fruit shop for the aforementioned commercial purposes, this implies that B.B.B. carried out operations involving the processing of the claimant's personal data that are not covered by the contractual lawful basis of FRUTAS CALISA. Furthermore, for B.B.B. to send these personal content messages to the claimant, they would need to demonstrate that they have another lawful basis distinct from that of FRUTAS CALISA that would enable them to send messages to the claimant for purposes other than the original ones; that is, personally and for purposes different from the commercial relationship, as inferred from the content of the messages sent on November 25 and 27, 2022.

Regarding the content or purpose for which the aforementioned messages were sent, according to the version provided by the fruit shop, the employee sent the messages to the claimant on behalf of the fruit shop, following instructions from its owner, who states the following: "My surprise is that at the end of November A.A.A. placed their order and as they did not come to collect the products they ordered, they were called by phone, as always, and since they did not answer the calls, my (...) B.B.B. on Friday, November 25, sent them a WhatsApp (sic) as we usually did to remind them that the order was ready and seeing that the ordered product is perishable, they did not come to collect it on Saturday and on Sunday, November 27, they had not responded and we insisted they collect the order on Monday, November 28, and we did not hear from them again."

However, the claimant denies in their appeal for reconsideration that they had provided their phone number to the fruit shop to place and collect these orders, and provides a screenshot of the WhatsApp messages received from the employee of the defendant, the content of which was clearly personal and unrelated to the purpose concerning the vegan orders referred to by the establishment, as well as to the purpose for which they contracted the SALAMANCA TARJETA ACTIVA wallet account.

Thus, the content of the messages received from the phone number ***TELEFONO.1, which contains the profile picture of the holder, according to the provided photographs, was as follows:

- Received on Friday, November 25, 2022, at 20:32 is:

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“A cute vegan girl who will be hahahaha” 20:32

“Let me guess who I am” 20:33

“Sicker from WhatsApp raising arms” 20:59

-

Received on Sunday, November 27, 2022:

“A.A.A.??” 13:46

The WhatsApp application shows the message: “The sender is not in your contacts.”

With the options: “Block,” “Report,” and “Add to Contacts.”

However, the establishment insists that B.B.B. sent the messages to notify the claimant that her order was ready for pickup but does not provide a screenshot of these messages that could verify the truthfulness of such content, which would be easily obtainable, given that if they existed, they should still be reflected in the WhatsApp history of the sender, who is their employee and (...).

From the clearly personal content of the messages, in which the word “order” does not appear nor is there any indication that there is an order pending for pickup, combined with the fact that the messages were sent from a personal phone number of B.B.B., it can be deduced that he sent these messages on his own account for personal purposes, and not on behalf of the fruit shop for contractual purposes.

Therefore, from the above, it is deduced that there is evidence that B.B.B. violated the provisions of Article 6.1 of the GDPR, as he lacked a lawful basis to obtain the claimant's phone number and send her the personal content messages referred to in this file, which did not align with the purpose for which they were provided to the fruit shop.

IV

Classification and qualification of the infringement

The conduct carried out by the respondent constitutes an infringement of Article 6.1 of the GDPR.

Infringement classified in Article 83.5 of the GDPR which establishes:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 Euros or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purpose of determining the limitation period for the infringement, the LOPDGDD qualifies in its Article 72 this violation of the GDPR as a very serious infringement. The provision states:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years:

[...]

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

V

Sanction to be imposed

Article 58.2 of the GDPR relates the corrective powers attributed to the AEPD as the supervisory authority, including the power to impose an administrative fine (paragraph i).

In light of the proven facts in the procedure, it is deemed appropriate to impose on the respondent an administrative fine for the alleged infringement of Article 6.1 of the GDPR for which responsibility is attributed to him.

Article 83 of the GDPR, "General conditions for the imposition of administrative fines," states in its paragraph 1 that the supervisory authority shall ensure that the imposition of fines for the infringements of this Regulation indicated in paragraphs 4, 5, and 6, complies in each individual case with the principles of effectiveness, proportionality, and deterrent effect.

The principle of proportionality implies a correlation or adequacy between the infringement committed and the sanction imposed, prohibiting unnecessary or excessive measures, so that the sanction is suitable for achieving the purposes that justify it.

Article 83.2 of the GDPR, through a list of criteria or factors for its graduation, establishes the technique to achieve the adequacy between the infringement and the sanction. The provision states: "Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;

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- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58(2) have previously been ordered against the controller or processor concerned in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

Paragraph k) of Article 83.2 of the GDPR connects with Article 76 of the LOPDGDD, "Sanctions and corrective measures," which states:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be

attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In accordance with the transcribed provisions and the information contained in the administrative file, a fine of €300 (THREE HUNDRED EUROS) is imposed for the alleged violation of the provisions of Article 6.1 of the GDPR under the conditions referred to in this initiation agreement.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, a fine of €300.00 (THREE HUNDRED euros) for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

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THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. It is warned to the sanctioned party that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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